

**THE KING'S BENCH (FAMILY DIVISION)**  
\_\_\_\_\_ **Centre**

BETWEEN:

Petitioner/Applicant

- and -

Respondent

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**FOAEAA APPLICATION FOR ORDER – FINANCIAL**

under section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada)  
authorizing Registrar to request information for the **establishment or variation of a support order**

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\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
\_\_\_\_\_  
*(name, address, e-mail, and telephone number of party filing)*

**THE KING'S BENCH (Family Division)**\_\_\_\_\_  
**Centre**

BETWEEN:

Petitioner/Applicant

– and –

Respondent

**APPLICATION FOR ORDER (FINANCIAL)**

under section 10 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada)  
authorizing Registrar to request information for the **establishment or variation of a support order**

THIS APPLICATION IS MADE WITH NOTICE TO \_\_\_\_\_  
(full name)

The details of the application are on the attached pages and the Affidavit of the party making this application.

IF YOU WISH TO OPPOSE THIS APPLICATION, you or a Manitoba lawyer acting on your behalf must prepare an affidavit (Form 4D) stating your reasons, file it in this court office within 15 days of service and serve it on the other party's lawyer or, where the other party does not have a lawyer, serve it on the other party.

**IF YOU FAIL TO FILE AND SERVE THE REQUIRED DOCUMENTS, THIS APPLICATION MAY PROCEED IN YOUR ABSENCE AND WITHOUT FURTHER NOTICE TO YOU, AN ORDER MAY BE MADE AUTHORIZING THE REGISTRAR OF THE COURT OF KING'S BENCH TO REQUEST THE SPECIFIED INFORMATION FROM THE FEDERAL GOVERNMENT FOR THE PURPOSE OF THE ESTABLISHMENT OR VARIATION OF A SUPPORT ORDER. A FURTHER ORDER MAY BE MADE DISCLOSING THE SPECIFIED INFORMATION TO THE APPLICANT.**

\_\_\_\_\_  
Date

Issued by \_\_\_\_\_  
Deputy Registrar

Court of King's Bench - \_\_\_\_\_ Centre

\_\_\_\_\_  
\_\_\_\_\_  
(court address)

## DETAILS OF THE APPLICATION

1. The applicant makes this application under section 7 of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) for an order under section 10 of that Act to authorize an official of the court to apply for the release of the following information under section 12 of that Act:

*(Strike out paragraph (a) if not applicable)*

- a) The information that is set out in the federal tax form(s) checked below related to

\_\_\_\_\_  
*(full name, date of birth, and SIN (if known) of party whose financial information is required)*

for the following taxation year(s) unless otherwise specified beside the specific form listed:

— *(insert for which specific taxation year(s) the information is requested)*

| Federal Tax Form(s)                                                                                                     | Year(s) requested<br><i>(if different than above)</i> |
|-------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------|
| <b>Basic income information</b>                                                                                         |                                                       |
| <input type="checkbox"/> Income Tax and Benefits Return (T1)                                                            |                                                       |
| <input type="checkbox"/> Schedule 1 – Federal Tax                                                                       |                                                       |
| <input type="checkbox"/> Schedule 2 – Federal Amounts Transferred from your spouse or Common-Law Partner                |                                                       |
| <input type="checkbox"/> Schedule 3 – Capital Gains (or Losses)                                                         |                                                       |
| <input type="checkbox"/> Schedule 4 – Statement of Investment Income                                                    |                                                       |
| <input type="checkbox"/> Schedule 5 – Amounts for Spouse or Common-Law Partner and Dependents                           |                                                       |
| <input type="checkbox"/> Schedule 6 – Canada Workers Benefit                                                            |                                                       |
| <input type="checkbox"/> Schedule 7 – RRSP, PRPP, and SPP Unused Contributions, Transfers, and HBP or LLP Activities    |                                                       |
| <input type="checkbox"/> Schedule 8 – Canada Pension Plan Contributions and Overpayment                                 |                                                       |
| <input type="checkbox"/> Schedule 9 – Donations and Gifts                                                               |                                                       |
| <input type="checkbox"/> Schedule 10 – Employment Insurance (EI) and Provincial Parental Insurance Plan (PPIP) Premiums |                                                       |
| <input type="checkbox"/> Schedule 11 – Federal Tuition, Education, and Textbook Amounts and Canada Training Credit      |                                                       |
| <input type="checkbox"/> Schedule 12 – Home Expense Accessibility                                                       |                                                       |
| <input type="checkbox"/> Schedule 13 – Employment Insurance Premiums on Self-Employment and Other Eligible Earnings     |                                                       |
| <input type="checkbox"/> Schedule 14 – Climate Action Incentive                                                         |                                                       |
| <b>For non-resident and deemed residents:</b>                                                                           |                                                       |
| <input type="checkbox"/> Schedule A – Statement of World Income (for Non-Residents and Deemed Residents of Canada)      |                                                       |
| <input type="checkbox"/> Schedule B – Allowable Amount of Non-Refundable Tax Credits (for Non-Residents of Canada)      |                                                       |
| <input type="checkbox"/> Schedule C – Electing Under Section 217 of the Income Tax Act (for Non-Residents of Canada)    |                                                       |

|                                                                                                                                                                   |  |
|-------------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| <input type="checkbox"/> Notice of Assessment and Notice of Reassessment                                                                                          |  |
| <input type="checkbox"/> Statement of Trust Income Allocations and Designations (T3)                                                                              |  |
| <input type="checkbox"/> Statement of Remuneration Paid (T4)                                                                                                      |  |
| <input type="checkbox"/> Statement of Pension, Retirement, Annuity, and Other Income (T4A)                                                                        |  |
| <input type="checkbox"/> Statement of Old Age Security (T4A(OAS))                                                                                                 |  |
| <input type="checkbox"/> Statement of Canada Pension Plan Benefits (T4A(P))                                                                                       |  |
| <input type="checkbox"/> Statement of Employment Insurance and Other Benefits (T4E) or<br>Statement of Employment Insurance and Other Benefits (Quebec)<br>(T4EQ) |  |
| <input type="checkbox"/> Statement of Income from a Registered Retirement Income Fund<br>(T4RIF)                                                                  |  |
| <input type="checkbox"/> Statement of RRSP Income (T4RSP)                                                                                                         |  |
| <input type="checkbox"/> Statement of Investment Income (T5)                                                                                                      |  |
| <input type="checkbox"/> Government Service Contract Payments (T1204)                                                                                             |  |
| <input type="checkbox"/> Statement of Benefits (T5007)                                                                                                            |  |
| <input type="checkbox"/> Statement of Securities Transactions (T5008)                                                                                             |  |
| <input type="checkbox"/> Statement of Partnership Income (T5013)                                                                                                  |  |
| <input type="checkbox"/> Statement of Contract Payments (T5018)                                                                                                   |  |

*(Strike out paragraph (b) if not applicable)*

b) The name and address of the employer of \_\_\_\_\_.  
(full name, date of birth and SIN (if known) of the party whose  
income information is required)

*(Strike out paragraph (c) if not applicable)*

c) Where information is needed for the determination of a party's household's income in accordance with the applicable legislation, the information that is set out in the federal tax form(s) specified in the attached annex(es) A related to the person(s) identified below:

\_\_\_\_\_  
(Name of the person, date of birth and SIN (if known))

\_\_\_\_\_  
(Name of the person, date of birth and SIN (if known))

\_\_\_\_\_  
(Name of the person, date of birth and SIN (if known))

\_\_\_\_\_  
(Name of the person, date of birth and SIN (if known))

*(Strike out paragraph (d) if not applicable)*

- d) Where the person named controls a corporation, directly or indirectly, within the meaning of subsection 256(5.1) of the *Income Tax Act*, R.C.S. 1985, c.1 (5th supp.), the information that is set out in the federal tax form(s) specified in the attached annex(es) B related to the corporation(s) identified below:

\_\_\_\_\_  
(Name and business number (if known) of the corporation)

\_\_\_\_\_  
(Name and business number (if known) of the corporation)

\_\_\_\_\_  
(Name and business number (if known) of the corporation)

\_\_\_\_\_  
(Name and business number (if known) of the corporation)

2. The applicant also makes an application for an order under subsection 13(3) of the *Family Orders and Agreements Enforcement Assistance Act* (Canada) that upon receipt of the information by the court, that the information is to be disclosed to (the applicant/the applicant's lawyer) for the purpose of the application to establish/vary support.
3. The Affidavit of the applicant is attached to this application.

**ANNEX A***(A separate Annex A is required for each person whose information is sought)*

Application made under section 7 of the *Family Orders and Agreements Enforcement Assistance Act* for an order authorizing a court official to request information for the establishment or variation of a support order:

**The information requested to determine household income in accordance with the applicable Child Support Guidelines is information related to** \_\_\_\_\_

*(Name of the person, date of birth and SIN (if known) whose information is sought)*

that is set out in the following federal tax forms and that can be found in federal information banks prescribed in section 3 of the *Release of Information for Family Orders and Agreements Enforcement Assistance Regulations*, SOR/2023-125.

- ☐ The information that is set out in the federal tax form(s) checked below is requested for the following taxation year(s) unless otherwise specified beside the specific form:

\_\_\_\_\_  
*(Insert for which specific taxation year(s) the information is requested)*

| <b>Federal Tax Form(s)</b>                                                                                              | <b>Year(s) requested<br/>(if different than above)</b> |
|-------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------|
| <b>Basic income information</b>                                                                                         |                                                        |
| <input type="checkbox"/> Income Tax and Benefits Return (T1)                                                            |                                                        |
| <input type="checkbox"/> Schedule 1 – Federal Tax                                                                       |                                                        |
| <input type="checkbox"/> Schedule 2 – Federal Amounts Transferred from your spouse or Common-Law Partner                |                                                        |
| <input type="checkbox"/> Schedule 3 – Capital Gains (or Losses)                                                         |                                                        |
| <input type="checkbox"/> Schedule 4 – Statement of Investment Income                                                    |                                                        |
| <input type="checkbox"/> Schedule 5 – Amounts for Spouse or Common-Law Partner and Dependents                           |                                                        |
| <input type="checkbox"/> Schedule 6 – Canada Workers Benefit                                                            |                                                        |
| <input type="checkbox"/> Schedule 7 – RRSP, PRPP, and SPP Unused Contributions, Transfers, and HBP or LLP Activities    |                                                        |
| <input type="checkbox"/> Schedule 8 – Canada Pension Plan Contributions and Overpayment                                 |                                                        |
| <input type="checkbox"/> Schedule 9 – Donations and Gifts                                                               |                                                        |
| <input type="checkbox"/> Schedule 10 – Employment Insurance (EI) and Provincial Parental Insurance Plan (PPIP) Premiums |                                                        |
| <input type="checkbox"/> Schedule 11 – Federal Tuition, Education, and Textbook Amounts and Canada Training Credit      |                                                        |
| <input type="checkbox"/> Schedule 12 – Home Expense Accessibility                                                       |                                                        |
| <input type="checkbox"/> Schedule 13 – Employment Insurance Premiums on Self-Employment and Other Eligible Earnings     |                                                        |
| <input type="checkbox"/> Schedule 14 – Climate Action Incentive                                                         |                                                        |
| <b>For non-resident and deemed residents:</b>                                                                           |                                                        |
| <input type="checkbox"/> Schedule A – Statement of World Income (for Non-Residents and Deemed Residents of Canada)      |                                                        |
| <input type="checkbox"/> Schedule B – Allowable Amount of Non-Refundable Tax Credits (for Non-Residents of Canada)      |                                                        |
| <input type="checkbox"/> Schedule C – Electing Under Section 217 of the Income Tax Act (for Non-                        |                                                        |

|                                                                                                                                                                |  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------|--|
| Residents of Canada)                                                                                                                                           |  |
| <input type="checkbox"/> Notice of Assessment and Notice of Reassessment                                                                                       |  |
| <input type="checkbox"/> Statement of Trust Income Allocations and Designations (T3)                                                                           |  |
| <input type="checkbox"/> Statement of Remuneration Paid (T4)                                                                                                   |  |
| <input type="checkbox"/> Statement of Pension, Retirement, Annuity, and Other Income (T4A)                                                                     |  |
| <input type="checkbox"/> Statement of Old Age Security (T4A(OAS))                                                                                              |  |
| <input type="checkbox"/> Statement of Canada Pension Plan Benefits (T4A(P))                                                                                    |  |
| <input type="checkbox"/> Statement of Employment Insurance and Other Benefits (T4E) or Statement of<br>Employment Insurance and Other Benefits (Quebec) (T4EQ) |  |
| <input type="checkbox"/> Statement of Income from a Registered Retirement Income Fund (T4RIF)                                                                  |  |
| <input type="checkbox"/> Statement of RRSP Income (T4RSP)                                                                                                      |  |
| <input type="checkbox"/> Statement of Investment Income (T5)                                                                                                   |  |
| <input type="checkbox"/> Government Service Contract Payments (T1204)                                                                                          |  |
| <input type="checkbox"/> Statement of Benefits (T5007)                                                                                                         |  |
| <input type="checkbox"/> Statement of Securities Transactions (T5008)                                                                                          |  |
| <input type="checkbox"/> Statement of Partnership Income (T5013)                                                                                               |  |
| <input type="checkbox"/> Statement of Contract Payments (T5018)                                                                                                |  |

**ANNEX B**

*(A separate Annex B is required for each corporation whose information is sought)*

Application made under section 7 of the *Family Orders and Agreements Enforcement Assistance Act* for an order authorizing a court official to request information for the establishment or variation of a support order:

The information requested is related to \_\_\_\_\_ that is

*(Name of corporation and business number (if known) whose information is sought)*

controlled directly or indirectly within the meaning of subsection 256(5.1) of the *Income Tax Act*, R.C.S. 1985, c.1 (5th supp.) by \_\_\_\_\_

*(Name of person whose information is sought)*

that is set out in the following federal tax forms and that can be found in federal information banks prescribed in section 3 of the *Release of Information for Family Orders and Agreements Enforcement Assistance Regulations*, SOR/2023-125.

- ☐ The information that is set out in the federal tax form(s) checked below is requested for the following taxation year(s) unless otherwise specified beside the specific form:

\_\_\_\_\_  
*(Insert for which specific taxation year(s) the information is requested)*

| <b>Federal Tax Form(s)</b>                                                          | <b>Year(s) requested<br/>(if different than above)</b> |
|-------------------------------------------------------------------------------------|--------------------------------------------------------|
| <b>Basic income information</b>                                                     |                                                        |
| <input type="checkbox"/> T2 – Corporation Income Tax Return                         |                                                        |
| <input type="checkbox"/> Schedule 1 – Net Income (loss) for Income Tax Purposes     |                                                        |
| <input type="checkbox"/> Schedule 5 – Tax Calculations Supplementary – Corporations |                                                        |
| <input type="checkbox"/> Schedule 6 – Summary of Dispositions of Capital Property   |                                                        |
| <input type="checkbox"/> Schedule 100 – Balance Sheet Information                   |                                                        |
| <input type="checkbox"/> Schedule 50 – Shareholder Information                      |                                                        |
| <input type="checkbox"/> Schedule 125 – Income Statement Information                |                                                        |